

IP06

## Judiciary: Supreme Court, High Courts and Judicial

### Review

*About 1-2 questions a paper. The documented repeats are the judicial expansion of Article 21 (2018, 2024), Maneka Gandhi on 'procedure established by law' (2023) and Article 39A on free legal aid (2018, 2024). For Rajasthan there is a standing interest in the Rajasthan High Court (2018, 2023, 2024) and in Vishaka, a Rajasthan case.*

Articles 124 to 147 for the Supreme Court, 214 to 231 for the High Courts, 233 to 237 for the district judiciary. On top of that sits the case law - the amendability line from Shankari Prasad to Kesavananda to Minerva Mills. RPSC asks two things here: Article numbers, and which case laid down which principle. Nothing else.

## Judiciary (Art. 124-147, 214-237)

### Supreme Court

- Art. 124 - establishment
- Inaugurated 28 Jan 1950
- Strength CJI + 37 = 38 (2026 Act)
- Retirement age 65
- Art. 130 - seat at Delhi

### Appointment

- First Judges Case 1981
- Second Judges Case 1993 - collegium
- Third Judges Case 1998 - CJI + 4
- NJAC struck down 16 Oct 2015
- 99th Amendment invalid

### Jurisdiction

- Art. 131 - original
- Art. 132/133/134 - appellate
- Art. 136 - special leave
- Art. 137 - review
- Art. 143 - advisory

### Special powers

- Art. 129 - court of record
- Art. 141 - law binding on all courts
- Art. 142 - complete justice
- Art. 144 - authorities act in aid
- Art. 32 - writ jurisdiction

### High Courts

- 25 High Courts
- Art. 214 - one for each State
- Art. 217 - retirement at 62
- Art. 222 - transfer of judges
- Art. 226 - wider than Art. 32

### Below the High Court

- Art. 233 - district judges
- Art. 235 - HC control
- Art. 323A/323B - tribunals
- Lok Adalat - LSA Act 1987
- Gram Nyayalayas Act 2008

### Landmark line

- Shankari Prasad 1951
- Golaknath 1967
- Kesavananda 1973
- Minerva Mills 1980
- Puttaswamy 2017

## The Supreme Court - what it is and how big it is

The Supreme Court replaced the Federal Court of India that had been created under the Government of India Act, 1935. It was inaugurated on 28 January 1950, two days after the Constitution came into force. Its size is not fixed by the Constitution beyond a floor - Article 124 lets Parliament increase the number of judges by law, and Parliament has done so repeatedly.

- Article 124 - establishment and constitution of the Supreme Court.
- Original strength: a Chief Justice and 7 other judges.
- Raised in stages; it stood at 34 after the 2019 increase.
- First Chief Justice of India - H. J. Kania.
- Article 130 - the seat is Delhi, or such other place as the Chief Justice of India may appoint with the approval of the President.
- Article 126 - acting Chief Justice; Article 127 - ad hoc judges.
- Article 128 - retired judges may attend sittings of the Supreme Court; Article 224A does the same for High Courts.

#### CURRENT LINK

Current link (as of September 2026): the sanctioned strength of the Supreme Court is now 38 - the Chief Justice of India plus 37 other judges - raised from 34 by the Supreme Court (Number of Judges) Amendment Act, 2026, which received Presidential assent in August 2026 after the Bill was cleared by the Union Cabinet in May 2026 and passed by Parliament in the monsoon session. Any pre-2026 book on your shelf will still say 34. If both 34 and 38 appear in an option set for a 2026 paper, 38 is the current figure - but read whether the question asks for the present strength or for the position before the amendment.

#### Qualifications and tenure - Supreme Court against High Court

| Item        | Supreme Court                                     | High Court                               |
|-------------|---------------------------------------------------|------------------------------------------|
| Article     | 124(3)                                            | 217                                      |
| Route 1     | Five years as a judge of a High Court             | Ten years of judicial office in India    |
| Route 2     | Ten years as an advocate of a High Court          | Ten years as an advocate of a High Court |
| Route 3     | A distinguished jurist in the President's opinion | NO distinguished jurist category exists  |
| Minimum age | None prescribed                                   | None prescribed                          |

| Item           | Supreme Court | High Court |
|----------------|---------------|------------|
| Retirement age | 65 years      | 62 years   |

**TRAP**

The 'distinguished jurist' route exists only for the Supreme Court under Article 124(3). There is no such category for a High Court judge under Article 217. This is the most reliable NOT-correct option in the whole chapter. Also fix the ages - 65 for the Supreme Court, 62 for a High Court - they are asked as a straight one-liner.

## How judges are appointed - the collegium and the NJAC

The Constitution says only that the President appoints judges after consultation. The word 'consultation' was fought over for forty years, and the fight produced four judgments. Learn them as a sequence, because RPSC asks which case created the collegium and which case killed the NJAC.

### The four Judges Cases

First Judges Case - S. P. Gupta, 1981: 'consultation' does not mean concurrence; primacy to the executive



Second Judges Case, 1993: reversed it; the CJI's opinion has primacy; the collegium is born



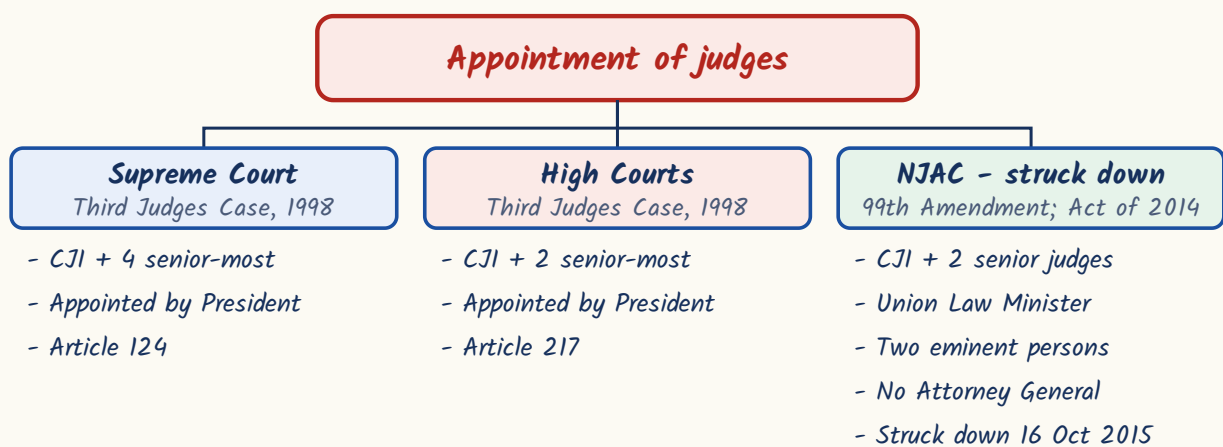
Third Judges Case - In re Special Reference, 1998: collegium fixed at CJI plus his four senior-most colleagues for Supreme Court appointments, and CJI plus two for High Court appointments



Fourth Judges Case, 16 October 2015: the 99th Amendment and the NJAC Act, 2014 struck down for violating the independence of the judiciary, a basic feature

- The proposed NJAC had six members - the CJI, the two senior-most Supreme Court judges, the Union Law Minister and two eminent persons.
- The Attorney General was NOT a member of the proposed NJAC.
- Independence of the judiciary is a basic feature; that was the ground for striking the NJAC down.
- For a Supreme Court appointment the collegium is the CJI plus four senior-most judges; for a High Court appointment, the CJI plus two.

### Appointment of judges - the collegium and the NJAC



### Removal of a judge

- Article 124(4) - removal by the President after an address by EACH House.
- Each address must be supported by a majority of the total membership of that House AND by a majority of not less than two-thirds of the members present and voting.
- Both Houses must pass it in the SAME session.
- The only grounds are proved misbehaviour or incapacity.
- The procedure is governed by the Judges (Inquiry) Act, 1968.
- No judge of the Supreme Court has ever been removed. The motion against Justice V. Ramaswami failed in the Lok Sabha in 1993 when the ruling party abstained.

### YAAD RAKHO

The majority for removing a judge is the same special majority used for a constitutional amendment under Article 368 - majority of total membership plus two-thirds of those present and voting. Learn one, get both. Do not confuse it with the President's impeachment, which needs two-thirds of the TOTAL membership.

### How the Constitution keeps the judiciary independent

#### Security of tenure

Removal only for misbehaviour

#### Fixed retirement age

65 in the SC, 62 in a High Court

#### Control of lower courts

Art 235 - with the High Court

#### A basic feature

NJAC struck down, 16 Oct 2015

### INDEPENDENT JUDICIARY

#### A hard removal route

Special majority in both Houses

#### Court of record

Art 129 and Art 215 - contempt

#### Separation from executive

Art 50 - Directive Principle

## Jurisdiction - the whole menu in one table

The Supreme Court wears several hats. Original jurisdiction means the case starts there. Appellate means it comes up from below. Advisory means the President asks and the Court answers without a lis. Add the writ jurisdiction under Article 32 and the special powers of Articles 141 to 144, and you have the whole picture.

### Jurisdiction of the Supreme Court

| Article | Type                       | What it covers                                                                                         |
|---------|----------------------------|--------------------------------------------------------------------------------------------------------|
| 131     | Original, and exclusive    | Federal disputes - Centre against a State, or States against each other                                |
| 132     | Appellate - constitutional | Appeal from a High Court on a substantial question of law as to the interpretation of the Constitution |
| 133     | Appellate - civil          | Civil appeals from a High Court                                                                        |
| 134     | Appellate - criminal       | Criminal appeals from a High Court                                                                     |
| 134A    | Certificate                | Certificate for appeal to the Supreme Court                                                            |
| 136     | Special leave              | Special leave to appeal from any court or tribunal except a court martial - a discretionary power      |
| 137     | Review                     | Power to review its own judgments and orders                                                           |
| 143     | Advisory                   | Reference by the President                                                                             |
| 32      | Writ                       | Enforcement of fundamental rights                                                                      |

- Article 141 - the law declared by the Supreme Court is binding on all courts within the territory of India.
- Article 142 - power to pass any decree or order necessary for doing complete justice in a cause before it.
- Article 144 - all civil and judicial authorities in India must act in aid of the Supreme Court.
- Article 129 - the Supreme Court is a court of record with power to punish for contempt of itself; Article 215 makes the same provision for High Courts.
- Truth was made a valid defence in contempt proceedings by the Contempt of Courts (Amendment) Act, 2006.

### Advisory jurisdiction - Article 143, and the 'may' that matters

- Under Article 143(1) the President may refer any question of law or fact of public importance - and the Court MAY decline to answer.
- Under Article 143(2), on a dispute arising out of a pre-Constitution treaty or agreement, the Court MUST give its opinion.
- The opinion is advisory only. It does not bind the President.
- The 1993 Ram Janmabhoomi reference was returned unanswered - a live illustration of the Court's power to decline.
- In November 2025 a five-judge Constitution Bench answered the Presidential Reference on assent to Bills.
- It held that courts cannot fix timelines for the Governor or the President under Articles 200 and 201, and rejected 'deemed assent'.
- Remember the may/must this way - a modern question is optional, an old treaty is compulsory. A statement set that reverses the two clauses is standard.

**CURRENT LINK**

Current link (as of September 2026): the freshest illustration of Article 143 is the Presidential Reference on the assent of Bills, answered in November 2025 by a five-judge Constitution Bench headed by Chief Justice B. R. Gavai. The Court held that courts cannot fix timelines for the Governor or the President under Articles 200 and 201 and rejected the concept of 'deemed assent'. Keep the character of the exercise straight - it is an opinion under the advisory jurisdiction, delivered on a reference by the President, and it does not bind him.

## Writs - kept short, because IP02 owns this

You have already learnt the five writs in the Fundamental Rights chapter. Here you only need the jurisdictional half - who issues them, under which Article, and why the High Court's power is wider. Revise the meanings in one pass and move on.

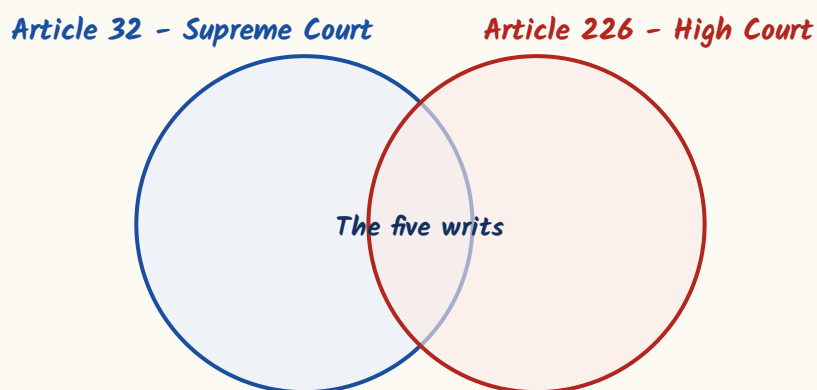
### The five writs - one line each

| Writ          | Meaning and use                                                                                                    |
|---------------|--------------------------------------------------------------------------------------------------------------------|
| Habeas corpus | 'To have the body' - to secure the release of a person unlawfully detained                                         |
| Mandamus      | 'We command' - directs a public authority to perform its public duty                                               |
| Prohibition   | Issued by a higher court to a lower court to stop proceedings exceeding its jurisdiction; preventive only          |
| Certiorari    | 'To be certified' - transfers a case to itself or quashes the order of a lower court; both preventive and curative |
| Quo warranto  | 'By what authority' - questions a person's claim to a public office                                                |

### Article 32 vs Article 226

| Article 32 - Supreme Court                                 | Article 226 - High Court                                                                                                            |
|------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|
| Only for the enforcement of fundamental rights             | For fundamental rights AND 'for any other purpose' - wider                                                                          |
| Is itself a fundamental right; cannot be refused           | Is a constitutional right, not a fundamental right; discretionary                                                                   |
| Cannot be suspended except as provided by the Constitution | May be refused on grounds such as an alternative remedy                                                                             |
| Jurisdiction extends over all of India                     | Territorial jurisdiction, extended by the 15th Amendment, 1963 to authorities outside it where the cause of action arises within it |

### Article 32 against Article 226



226 is the wider power - also 'for any other purpose'; 32 is itself a fundamental right

- Article 32 was called 'the heart and soul of the Constitution' by Dr. B. R. Ambedkar.
- Judicial review is nowhere defined in the Constitution. It flows from Articles 13, 32, 131 to 136, 143, 226, 227, 245, 246 and 372.
- Article 50, a Directive Principle, requires the separation of the judiciary from the executive.
- Public interest litigation was pioneered by Justices P. N. Bhagwati and V. R. Krishna Iyer; locus standi was relaxed in S. P. Gupta (1981).

## High Courts

There are 25 High Courts in India. The three oldest were all born in the same year, and the newest is barely older than your preparation. Both ends of that list are asked. For a Rajasthan aspirant there is an extra reason to be careful here - RPSC has asked about the Rajasthan High Court in 2018, 2023 and 2024.

### High Courts - the establishment dates that get matched

| High Court                  | Year | Point of interest                                                           |
|-----------------------------|------|-----------------------------------------------------------------------------|
| Calcutta                    | 1862 | The first High Court in India, under the Indian High Courts Act, 1861       |
| Bombay                      | 1862 | Established in the same year as Calcutta and Madras                         |
| Madras                      | 1862 | The third of the 1862 trio                                                  |
| Allahabad                   | 1866 | Has the largest sanctioned judge strength of any High Court                 |
| Rajasthan                   | 1949 | Inaugurated on 29 August 1949 at Jodhpur; a bench was later added at Jaipur |
| Andhra Pradesh at Amaravati | 2019 | Created on 1 January 2019; the 25th and newest High Court                   |

- Article 214 - there shall be a High Court for each State.
- Article 231 - Parliament may establish a common High Court for two or more States or Union Territories.
- Article 222 - the President may transfer a judge from one High Court to another, after consulting the Chief Justice of India.
- Article 224 - additional and acting judges; Article 224A - a retired judge may sit at the sittings of a High Court.
- Article 227 - power of superintendence over all courts and tribunals within its territorial jurisdiction.
- That superintendence does NOT extend to courts and tribunals constituted under any law relating to the armed forces.
- Article 217 - a High Court judge retires at 62; removal follows the same procedure as for a Supreme Court judge.

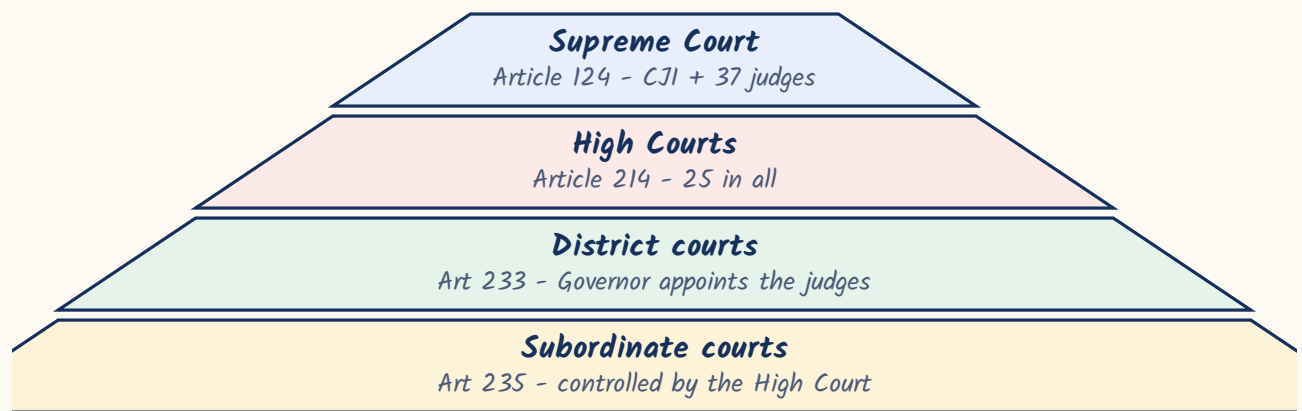
**TRAP**

Article 227 is superintendence. Article 231 is a common High Court for two or more States. RPSC has offered 'Article 227 - establishment of a common High Court' as the wrong pair in a NOT-correctly-matched question. Fix the two numbers by their subject, not by their order.

**Below the High Court**

- Article 233 - district judges are appointed by the Governor in consultation with the High Court.
- A person not already in the service must have been an advocate for at least seven years to be appointed a district judge.
- Article 235 - control over the subordinate judiciary vests in the High Court, not in the State Government.

### The hierarchy of courts



### Tribunals, Lok Adalats and access to justice

Alongside the regular courts the Constitution and Parliament have built a second track - tribunals for specialised disputes, and Lok Adalats and Gram Nyayalayas for cheap, quick settlement. The constitutional peg for the second of these is Article 39A, and that Article alone has been asked twice.

- Articles 323A and 323B were inserted by the 42nd Amendment Act, 1976.
- Article 323A - administrative tribunals; only PARLIAMENT can legislate under it.
- Article 323B - tribunals for other matters; BOTH Parliament and State Legislatures can act under it.
- The Central Administrative Tribunal was set up under the Administrative Tribunals Act, 1985.
- *L. Chandra Kumar v. Union of India (1997)* - judicial review under Articles 32 and 226 is part of the basic structure.
- The same case held tribunal decisions subject to scrutiny by a Division Bench of the High Court concerned.

### Access-to-justice institutions and their statutes

| Institution                       | Governing law                                      | The examinable detail                                                                                                                           |
|-----------------------------------|----------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------|
| Lok Adalat                        | Legal Services Authorities Act, 1987               | Its award is deemed a decree of a civil court; final and binding; NO appeal lies                                                                |
| Permanent Lok Adalat              | Section 22B of the same Act                        | For public utility services; pecuniary jurisdiction up to Rs 1 crore                                                                            |
| National Legal Services Authority | Same Act, in force from 9 November 1995            | 9 November is observed as National Legal Services Day                                                                                           |
| Gram Nyayalaya                    | Gram Nyayalayas Act, 2008, in force 2 October 2009 | Mobile court at the intermediate panchayat level, presided over by a Nyayadhipikari with the status of a Judicial Magistrate of the first class |
| Central Administrative Tribunal   | Administrative Tribunals Act, 1985                 | Set up under Article 323A                                                                                                                       |

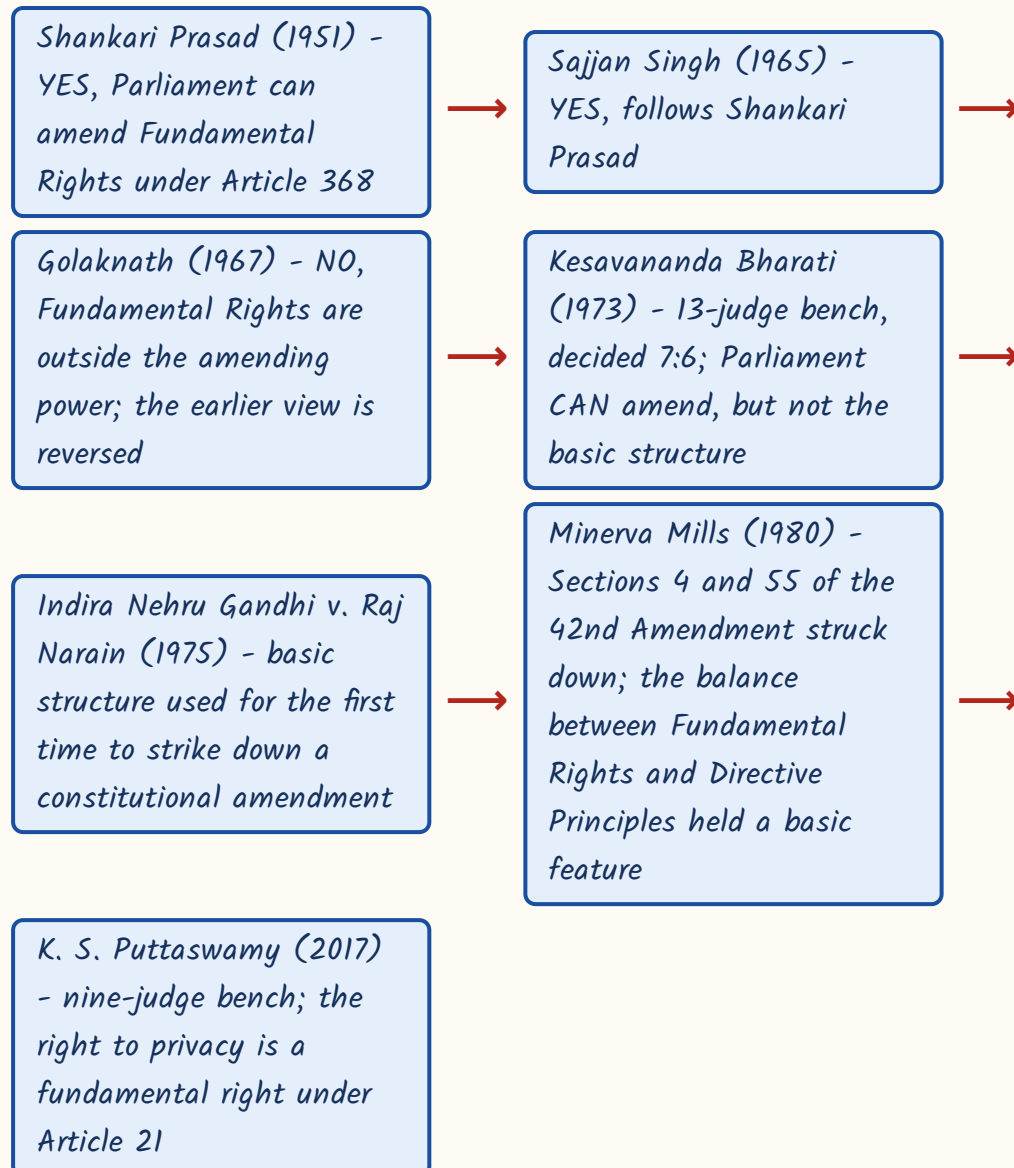
**ASKED IN RAS**

Asked in RAS Pre 2018 and again in 2024 - equal justice and free legal aid is enshrined in which Article? Answer: Article 39A, a Directive Principle inserted by the 42nd Amendment Act, 1976. It is the constitutional basis of the Legal Services Authorities Act, 1987.

**The amendability line - the case sequence you must be able to recite**

This is the spine of Indian constitutional law and the most reliably examined part of the chapter. The question is simple: can Parliament amend the Fundamental Rights? The answer changed three times before it settled. Learn the sequence with years attached, because it is asked both as a chronology and as a case-to-principle match.

## Can Parliament amend the Fundamental Rights? The judicial line



## Case to principle - the match-the-following set

| Case                                 | Principle laid down                                                                 |
|--------------------------------------|-------------------------------------------------------------------------------------|
| Maneka Gandhi (1978)                 | The procedure established by law under Article 21 must be fair, just and reasonable |
| Hussainara Khatoon (1979)            | Right to a speedy trial under Article 21                                            |
| Olga Tellis (1985)                   | Right to livelihood under Article 21                                                |
| Unni Krishnan (1993)                 | Right to education under Article 21                                                 |
| S. R. Bommai (1994)                  | A Proclamation under Article 356 is subject to judicial review                      |
| Vishaka v. State of Rajasthan (1997) | Guidelines against sexual harassment of women at the workplace                      |

| Case                    | Principle laid down                                                      |
|-------------------------|--------------------------------------------------------------------------|
| L. Chandra Kumar (1997) | Judicial review under Articles 32 and 226 is part of the basic structure |
| K. S. Puttaswamy (2017) | Right to privacy is a fundamental right                                  |

**ASKED IN RAS**

Asked in RAS Pre 2018 and again in 2024 as a statement set on the judicial expansion of Article 21 - livelihood in *Olga Tellis*, education in *Unni Krishnan*, privacy in *Puttaswamy*. All three statements were correct. Learn the case-to-right pairing, not the facts of the cases.

**ASKED IN RAS**

Asked in RAS Pre 2023 - in which case did the Supreme Court hold that the 'procedure established by law' under Article 21 must be fair, just and reasonable? Answer: *Maneka Gandhi v. Union of India* (1978).

**YAAD RAKHO**

Bench strengths are worth ten seconds. *Kesavananda Bharati* - 13 judges, decided 7:6, the largest bench ever. *Puttaswamy* - 9 judges, unanimous. If a question gives you a bench size, it is usually pointing at one of these two.

**TRAP**

*Vishaka* (1997) arose in Rajasthan, out of the gang rape of Bhanwari Devi, a saathin of the Women's Development Programme. RPSC likes Rajasthan connections. Note also that the *Vishaka* guidelines were replaced by the Sexual Harassment of Women at Workplace Act, 2013 - so 'the guidelines are still the governing law' is a wrong statement.

**REVISION RECAP**

1. Supreme Court inaugurated 28 January 1950, replacing the Federal Court of 1935; first CJI H. J. Kania.
2. Original strength CJI + 7; raised to 34 in 2019 and to 38 (CJI + 37) by the Supreme Court (Number of Judges) Amendment Act, 2026 - position as of September 2026.
3. Qualifications under Article 124(3): 5 years a High Court judge, or 10 years a High Court advocate, or a distinguished jurist. No minimum age.
4. Retirement - Supreme Court 65, High Court 62. No 'distinguished jurist' route for a High Court judge.
5. Removal of a judge needs a special majority in each House in the same session, on proved misbehaviour or incapacity; Judges (Inquiry) Act, 1968. Never yet done.
6. Collegium: Second Judges Case (1993) created it; Third Judges Case (1998) fixed CJI + 4 for the Supreme Court and CJI + 2 for High Courts.
7. NJAC and the 99th Amendment struck down on 16 October 2015 in the Fourth Judges Case.
8. Jurisdiction - 131 original, 132/133/134 appellate, 136 special leave, 137 review, 143 advisory.
9. Article 141 binding law, 142 complete justice, 144 authorities in aid, 129 court of record.
10. Article 143(1) - the Court may decline; Article 143(2) on a pre-Constitution treaty - it must answer. Ram Janmabhoomi reference returned unanswered in 1993.
11. Article 226 is wider than Article 32 - 'for any other purpose'; extended beyond territory by the 15th Amendment, 1963.
12. 25 High Courts; Calcutta, Bombay and Madras all 1862; Allahabad 1866 has the largest sanctioned strength; Andhra Pradesh at Amaravati (2019) is the 25th.
13. Rajasthan High Court inaugurated 29 August 1949 at Jodhpur, with a bench later at Jaipur.
14. Article 227 superintendence excludes armed forces tribunals; Article 231 is a common High Court; Article 222 is transfer.
15. District judges - appointed by the Governor in consultation with the High Court; seven years at the bar for an outsider; Article 235 gives the High Court control.
16. Articles 323A and 323B came with the 42nd Amendment; only Parliament may act under 323A.
17. Lok Adalat award is a civil decree with no appeal; Permanent Lok Adalat up to Rs 1 crore; 9 November is National Legal Services Day.
18. Gram Nyayalayas Act, 2008 in force 2 October 2009; the Nyayadhikari ranks as a Judicial Magistrate first class.
19. Amendability: Shankari Prasad and Sajjan Singh yes, Golaknath no, Kesavananda (13 judges, 7:6) basic structure, Minerva Mills the FR-DPSP balance.

20. Article 21 expansion - Maneka (fair procedure), Hussainara Khatoon (speedy trial), Olga Tellis (livelihood), Unni Krishnan (education), Puttaswamy (privacy, 9 judges).